

Stakeholder consultation on the Draft Guidelines on the classification of high-risk AI systems under Article 6 of the AI Act

Fields marked with * are mandatory.

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Disclaimer: This document is a working document of the AI Office for the purpose of consultation and does not prejudice the final decision that the Commission may take on the final guidelines. The responses to this consultation paper aim to provide relevant stakeholder input to the Commission when finalising the guidelines.

This consultation is targeted to stakeholders of different categories. These categories include, but are not limited to, providers and deployers of (high-risk) AI systems, other industry organisations, as well as academia, other independent experts, civil society organisations, and public authorities and the citizens.

The Artificial Intelligence Act (the 'AI Act'), which entered into force on 1 August 2024, creates a single market and harmonised rules for trustworthy and human-centric Artificial Intelligence (AI) in the EU. It aims to promote innovation and uptake of AI, while ensuring a high level of protection of health, safety and fundamental rights, including democracy and the rule of law.

The AI Act follows a risk-based approach classifying AI systems into different risk categories, one of which is the high-risk AI systems (Chapter III of the AI Act).

The AI Act distinguishes between two categories of AI systems that are considered as 'high-risk', as set out in Article 6(1) and 6(2) AI Act. Article 6(1) AI Act covers AI systems that are embedded as safety components in products or that themselves are products covered by Union legislation in Annex I, which could have an adverse impact on health and safety of persons. Article 6(2) AI Act covers AI systems that in view of their intended purpose are considered to pose a significant risk to health, safety or fundamental rights. The AI Act lists eight areas in which AI systems could pose such significant risk to health, safety or fundamental rights in Annex III and, within each area, lists specific use-cases that are to be classified as high-risk. Article 6(3) AI Act provides for exemptions for AI systems that are intended to be used for one of the use-cases listed in Annex III, but which do not pose significant risk since they fall under one of the exceptions listed in Article 6(3) AI Act.

With the [AI Omnibus](#) the entry into application of the requirements and obligations for high-risk AI systems under Article 6(2) and Annex III will be postponed to 2 December 2027. As regards the AI systems under Article 6(1) and Annex I the rules will apply from 2 August 2028. Other changes introduced to the classification rules under Article 6(1) and the definition of a 'safety component' are considered in the draft guidelines.

The draft Guidelines relate exclusively to the classification of high-risk AI systems. Further guidance from the Commission will follow, as indicated in the list of forthcoming guidelines published under: [Supporting the implementation of the AI Act with clear guidelines | Shaping Europe's digital future](#).

The draft Guidelines are prepared pursuant to Article 6(5) AI Act and focus on the rules for the high-risk classification. It is further required that these draft Guidelines should be accompanied with a comprehensive list of practical examples of use-cases of AI systems that are high-risk and not high-risk.

These draft Guidelines take into account the outcome of a stakeholder consultation organised by the Commission in June-July 2025 and input provided by the Member States in the context of the European Artificial Intelligence Board ('AI Board').

In addition to the written consultation process, the AI Office organised a series of targeted stakeholder workshops in December 2025 in order to gather further practical and sector-specific feedback on the draft Guidelines.

To complement these discussions and ensure the inclusion of a broad range of stakeholders, including representatives from industry, academia, civil society, public authorities and other relevant organisations, the AI Office also circulated a follow-up questionnaire aimed at collecting additional written input on specific aspects of the high-risk classification framework and its practical application.

On the basis of this input, the Commission prepared the draft guidelines which are now open for stakeholder feedback.

This second consultation accompanies the draft Guidelines on the classification of high-risk AI systems under Article 6 AI Act that aim to support consistent interpretation and effective implementation of the AI Act classification rules for high-risk AI systems across the EU.

This consultation seeks to collect targeted feedback on the clarity, completeness and practical usability of the draft Guidelines prepared by the Commission based on broad stakeholder input.

In particular, the Commission seeks feedback on whether the explanations, methodologies and examples provided sufficiently support stakeholders in determining whether an AI system qualifies as high-risk under the AI Act.

The draft Guidelines address the classification of high-risk AI systems in accordance with Article 6 AI Act and are structured as follows:

- **Section I** presents an introduction outlining the purpose, scope and legal context of the draft Guidelines. It recalls the objectives and risk-based structure of the AI Act, situates the concept of high-risk AI systems within that framework, and explains the legal basis and role of the draft Guidelines pursuant to Article 6(5) AI Act.
- **Section II** sets out general principles for the classification of high-risk AI systems, including the requirement that the system qualifies as an AI system and the role of the intended purpose for its classification.
- **Section III** explains the classification of high-risk AI systems under Article 6(1) AI Act and Annex I, including the key elements (such as the notion of a safety component and third-party conformity assessment).
- **Section IV** addresses the classification of high-risk AI systems under Article 6(2) AI Act and Annex III, including:

horizontal issues applicable across Annex III use cases (such as human involvement, the “intended to be used” criterion, and the interaction with national and EU law);

the application of the filter mechanism under Article 6(3) AI Act, including its conditions, exceptions, and safeguards;

detailed guidance on each high-risk use case listed under the eight areas in Annex III (biometrics; critical infrastructure; education and vocational training; employment; access to essential private and public services; law enforcement; migration, asylum and border control management; and administration of justice and democratic processes).

- **Section V** explains the transitional and grandfathering provisions of the AI Act, clarifying the entry into application of the high-risk AI system requirements and the conditions under which AI systems placed on the market or put into service before the relevant application dates remain subject to the new obligations.

All participants are invited to provide feedback on the particular sections of the draft Guidelines they are

interested in. In particular, respondents are encouraged to focus on:

- whether specific sections or subsections require further clarification or refinement to ensure effective implementation and compliance; and
- whether additional or current examples or use-cases should be included or excluded, taking into account the legal provisions of the AI Act.

The feedback collected through this consultation will support the Commission in refining and finalising the draft Guidelines, with the objective of ensuring they are clear, comprehensive, and practically useful for all stakeholders involved in the development, deployment and supervision of AI systems under the AI Act.

As not all sections may be relevant for all stakeholders, respondents may reply only to the section(s) they would like. Respondents are encouraged to provide **explanations and practical cases** as part of their responses to support the practical usefulness of the draft Guidelines. We kindly ask that the respondents to specify the exact section and paragraph of the draft Guidelines to which their comments refer.

The consultation also aims to collect input for the annual review of the list of prohibitions (Article 5 AI Act) and the high-risk use cases in Annex III AI Act to inform the Commission review pursuant to Article 112(1) AI Act.

The targeted consultation is available in **English only** and will be **open for 5 weeks starting on 19 May until 23 July 2026 (22:00 CET)**.

All contributions to this consultation may be made publicly available. Therefore, please do not share any personal or confidential information in your contribution (your written feedback). It is your responsibility to avoid personal data and any reference in your written feedback itself that would reveal your identity.

For information on how the Commission processes your personal data please read our Privacy Statement

[20250122_Public_Consultation_classification_of_high-risk_AI_systems_PrivacyStatement.pdf](#)

Information about the respondent

* First name

Lamar B.

* Surname

Shucrani

* Email address

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* Do you agree that we may publish your identity together with your contribution in the instance that all contributions are made publicly available?

If you act in your personal capacity: All contributions to this consultation may be made publicly available. You can choose whether you would like your details to be made public or to remain anonymous. The respondent category that you selected for this consultation, your answer regarding residence, and your contribution may be published as received. Should you choose to remain anonymous, your name will not be published. Please do not include any personal data in the contribution itself.

If you represent one or more organisations: All contributions to this consultation may be made publicly available. You can choose whether you would like respondent details to be made public or to remain anonymous. Only the following organisation details may be published: The respondent category that you selected for this consultation, the name of the organisation on whose behalf you reply as well as its size, its presence in or outside the EU and your contribution as received. Should you choose to remain anonymous, your name will not be published. Please do not include any personal data in the contribution itself if you want to remain anonymous.

- ☒ Yes
☐ No

* Do you agree that we may contact you in the event of follow-up questions or if we want to learn more about your responses?

- ☒ Yes
☐ No

* Do you represent an organisation (e.g., a public organisation, a company, a think tank or a civil society /consumer organisation) or act in your personal capacity (e.g., independent expert)?

- ☐ Organisation
☒ In a personal capacity

* Select your country of residence

BE - Belgium

* Which stakeholder category would you consider yourself in? If more than one category is applicable, please select the category that is best applicable in your situation / from the capacity you are responding.

Other

* Please, specify

Independent methodological evaluator in AI Act pre-conformity: an out-of-chain third party producing dated, reproducible Article 6 high-risk classification assessments (Sprinkling Act, BCE BE 1034.962.482).

* Sector(s) of activity

- | | | |
|--|---|--|
| ☒ Information technology | ☐ Employment | ☐ Transport |
| ☐ Public administration | ☐ Education and training | ☐ Telecommunications |
| ☐ Law enforcement | ☐ Consumer services | ☐ Retail |
| ☐ Justice sector | ☒ Business services | ☐ E-commerce |
| ☐ Legal services sector | ☐ Banking and finances | ☐ Advertising |
| ☐ Cultural and creative sector, including media | ☐ Manufacturing | ☐ Consumer protection |
| ☐ Healthcare | ☐ Energy | ☐ Others |

* Describe the activities of your organisation or yourself

1300 character(s) maximum

Sprinkling Act (BCE BE 1034.962.482, Brussels) is an independent methodological evaluator in AI Act pre-conformity. As an out-of-chain third party, it produces dated, reproducible position assessments on whether a given AI system is high-risk under Article 6, and maps the deployer-side obligations that follow. It is not a provider or deployer of AI systems, not a law firm, not a regulator or notified body, and not a certification body. Its input to this consultation is methodological: it concerns the operational, documentary defensibility of the Article 6(3) filter self-assessment. Not legal advice, and not a complete operational grid.

* On which part(s) of the draft Guidelines would like comment? *Multiple answers are possible. Please note that selecting a particular answer will direct you to a set of questions specifically related to subject specified.*

- ☐ **General principles for classification of high-risk AI systems under Article 6.** (Section II)
- ☐ **High-risk classification according to Article 6(1) – Annex I.** (Section III)
- ☒ **High-risk classification according to Article 6(2) – Annex III.** (Section IV)
- ☐ **Questions in relation to Article 112 paragraph 1 (Evaluation and Review)**

High-risk classification according to Article 6(2) – Annex III (Section IV of the draft Guidelines)

Select the relevant subsection(s):

- ☐ IV.1 Rationale and approach
- ☒ IV.2 Horizontal issues applicable to Annex III use cases
- ☐ IV.3 High-risk AI systems in the areas of Annex III

IV.2 Horizontal issues applicable to Annex III use cases

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☒ Yes
- ☐ No
- ☐ N/A

Relevant paragraph number

Only values of at most 1000 are allowed

115

Please specify

500 character(s) maximum

§115 sets out what the self-assessment must contain, but not the evidential standard that makes each item verifiable by a market surveillance authority. Suggest indicating, per §115 item, the documented artifact required (the decision architecture, not the provider's label), in an order applied before any per-condition claim: profiling carve-out (§89), then system boundary (§90), then conditions §86(a)-(d). Order is material; §117 and §305 put the burden on the provider.

Do you have more suggestions?

- ☐ Yes
- ☒ No

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☒ Yes
- ☐ No
- ☐ N/A

If so:

a) please explain why do you think they should be treated as such and

b) if your suggested example(s) or use case(s) are to be considered as in or out of scope.

3000 character(s) maximum

We suggest two illustrative examples that make the Article 6(3) filter conditions verifiable through the documented decision architecture rather than the provider's label. Both are offered to sharpen the in/out boundary, not to widen or narrow it.

Example 1: condition (d), preparatory task (cf. §107-108). A system that provides a human operator with references to relevant legal provisions, jurisdictional information and internal guidelines, to support a decision the human then makes.

a) Why: under §108 a task is preparatory only where the output is a general input or factor and does not

produce a specific recommendation or evaluation of the individual case. What distinguishes the two situations is documentable: the output is an input set, and a human assessment step exists downstream that the system neither produces nor scores. Treating the provider's "preparatory" label as sufficient, without evidence of that architecture, is the weak documentation that §117 exposes to a circumvention finding (penalties under Article 99).

b) In or out: the variant described should be treated as OUT of high-risk scope (the filter applies). A near-identical system that instead outputs a specific recommendation or case evaluation should be treated as IN scope (high-risk), even if labelled "preparatory". The point is that the in/out result follows from the evidenced architecture, not the label.

Example 2: condition (c), detection of patterns (cf. §100-102). An audit tool that analyses past eligibility checks completed by public administrators, for quality-assurance and reporting, without proposing outcomes on live cases.

a) Why: §101 requires an ex-post comparative assessment that does not infer new criteria and propose a fresh assessment, and §102 requires genuine, comprehensive "proper human review". Whether these hold is documentable: data-flow isolation between the audit corpus and the live decision path, and a human review that can weigh, alongside the system's output, the elements of the original assessment. The assertion alone is not verifiable; the architecture is.

b) In or out: the audit tool as described should be treated as OUT of high-risk scope (the filter applies and it does not constitute profiling). A system that instead re-evaluates current cases by inferring criteria from past decisions should be treated as IN scope (high-risk). The boundary turns on evidenced isolation and genuine human review, not on the stated purpose.

Both examples are deliberately illustrative; they name the architecture to be evidenced and do not prescribe a complete operational grid.

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☐ Yes
- ☐ No
- ☐ N/A

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☐ Yes
- ☐ No
- ☐ N/A

Question A. Are there any aspects / sections / paragraphs of this Section of the draft Guidelines that you believe require further clarification, and if so, how would you suggest they be improved to ensure effective implementation and compliance?

- ☐ Yes

- ☐ No
- ☐ N/A

Question B. Do you think there are additional examples or use-cases , relevant for this Section of the draft Guidelines, that you find important that the Guidelines include or exclude from the scope of high-risk classification, taking into account the legal provisions in the AI Act?

- ☐ Yes
- ☐ No
- ☐ N/A

Contact

[Contact Form](#)